

25NNCV03976 25NNCV03976

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-08-04
Motion: DEFENDANT SIXT RENT A CAR, LLC'S MOTION FOR SUMMARY JUDGMENT
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Case Number: 25NNCV03976 Hearing Date: August 4, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JONATHON MILLS,

Plaintiff(s),

vs.

ZACHERY
EZENAGU, et al.,

Defendant(s).

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CASE NO.: 25NNCV03976

[TENTATIVE]

ORDER RE: DEFENDANT SIXT RENT A CAR, LLC'S MOTION FOR SUMMARY
JUDGMENT

Dept.

3

8:30

a.m.

August

4, 2026

I.

INTRODUCTION

On June 10, 2025, plaintiff Jonathon
Mills ("Plaintiff") filed this action for negligence against defendant Sixt
Rent A Car LLC ("Defendant") and Zachery Ezenagu ("Ezenagu"). Plaintiff filed
the operative First Amended Complaint ("FAC") later the same day. The action
arises from a motor vehicle accident that occurred on June 12, 2023. (FAC, ¶
8.) Plaintiff alleges that he was a passenger in a rental car when Ezenagu failed

to yield to oncoming traffic and caused a collision. (Id.) Plaintiff alleges Ezenagu was Defendant's "agent, apparent agent, servant, partner, and/or customer" at the time of the collision. (FAC, ¶¶ 9, 11.)

Defendant filed this motion for summary judgment on April 20, 2026. Defendant argues Plaintiff cannot prevail on his cause of action for negligence because it is barred under the Graves Amendment 49 U.S.C. § 30106 and the doctrine of federal preemption.

The motion is unopposed.

II.

LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

III.

DISCUSSION

At the time of the collision underlying this action, Defendant was, and remains, a rental car company engaged in the business and trade of renting vehicles to the general public as envisioned under the Graves Amendment [49 U.S.C. section 16053]. (Defendant's Undisputed Material Fact ("UMF") No. 6.) The Graves amendment precludes vicarious liability from being imposed on the owner of a rental vehicle if the owner is engaged in the business of renting or leasing motor vehicles and there is no negligence or criminal wrongdoing on the part of the owner. (49 U.S.C. § 30106(a).) Here, Ezenagu rented the vehicle involved in the underlying

collision from Defendant on June 8, 2023. (UF No. 7.) Ezenagu presented a facially valid driver's license and executed the rental agreement pursuant to Defendant's required policies and procedures. (UMF Nos. 8-11.) Defendant relies on Plaintiff's discovery responses in contending that Plaintiff has no facts or admissible evidence establishing direct liability based on negligent entrustment and it is undisputed that Defendant did not commit any act of active negligence or criminal wrongdoing that caused or contributed to the collision. (Motion, pp. 6-7; UMF Nos. 13, 17-23.)

Accordingly, Defendant meets its burden to show that Plaintiff cannot establish that Defendant is directly or vicariously liable for Plaintiff's injuries caused by the motor vehicle collision. Plaintiff did not oppose this motion and failed to raise a triable issue of material fact. Therefore, the motion for summary judgment is GRANTED.

VI. CONCLUSION

Defendant's motion for summary judgment is GRANTED.

Defendant to give notice.

Dated
this 4th
day of August
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no

appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.